ART , Australian Government Solicitor - (Karlie Dickinson)

Re: Proceedings 2023/3361 and 2023/4494 – Application for Stay

Dear ART,

I acknowledge receipt of Miss Dickinson's correspondence dated March 11, 2025, in regards to my concerns and stay application, in which I note with significant concern her statement that the NDIS Commission asserts "there is no **current** criminal investigation pertaining to myself (Vida Reid) or to FFG following inquiries with the NDIA" This assertion is inconsistent with documented events and requires urgent clarification.

Clarification Required on Investigation Status

Your carefully worded statement requires immediate clarification on several critical points:

1. Does your assertion that "there is no current criminal investigation" apply solely to investigations directly conducted by the NDIA, or does it encompass all investigative activities across all agencies participating in the NDIS Fraud Fusion Taskforce?

2. Given that the Taskforce comprises 21 government agencies working in coordination on NDIS fraud matters, has the Commission sought confirmation from all relevant agencies, including the Australian Federal Police and Australian Criminal Intelligence Commission, regarding whether any investigation relating to myself or FFG is currently active and/or moved to prosecution?

3. Is the Commission drawing a technical distinction between different classifications of investigation (such as "criminal," "administrative," "intelligence gathering," or "monitoring") that might **mislead the Tribunal** about ongoing government interest in these matters?

Inconsistency in Position Regarding Stay Application

I direct your attention to the Respondent's own submissions dated November 29, 2023, which explicitly argued for a stay of proceedings because:

- "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings"

- "The Tribunal must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings"

This last statement requires particular attention as without clarity on the factual basis of potential criminal charges, the tribunal could inadvertently prejudice future proceedings.

The Respondent's current opposition to my stay application represents an unexplained reversal of its previous position. This inconsistency requires explanation, particularly as:

1. Criminal charges against me were dismissed on February 23, 2024, due to lack of prosecution (Exhibit VR-2), yet the basis for the Commission's banning order remains unchanged.

2. On September 26, 2024—seven months after the dismissal of charges—Australian Border Force officers detained my family at Perth International Airport, explicitly stating that this action was "triggered by a direct request from the NDIA."

These documented events directly contradict any suggestion that government agencies have ceased interest in these matters, making your assertion that there is "no current criminal investigation" technically misleading if not outright incorrect.

Change in Legal Grounds Requiring Proper Hearing

A matter of particular concern that requires proper hearing is the change in legal grounds for the banning order issued against me. The original order was made on December 20, 2022, under section 73ZN(2)(a)(i) of the NDIS Act (NDIS rules), but was later characterized as "varied" on April 21, 2023, to section 73ZN(2)(a)(iii),(suitability grounds) substantially broadening its scope.

This fundamental shift in legal basis requires proper examination, especially as it appears to constitute a new decision rather than a genuine variation—potentially circumventing proper procedural protections. As much as I am eager to have these matters heard, I am compelled to maintain all available procedural rights to protect my interests.

Request for Specific Clarification

In the interest of procedural fairness and transparency, I request specific written confirmation on:

1. Whether the Commission acknowledges that its assertion of "no current criminal investigation" is limited solely to direct NDIA investigations and does not encompass activities by other Taskforce agencies.

2. Whether all investigative activities related to myself and FFG have ceased across all government agencies, not merely the NDIA.

3. The specific inquiries made by the Commission to determine there is "no current criminal investigation," including which agencies were contacted, what specific questions were asked, and the exact responses received.

4. An explanation for the Commission's reversal of position regarding the stay application when the circumstances that previously justified a stay remain fundamentally unchanged.

Conclusion

While the respondent has suggested that the delays in these proceedings appear attributable to me, perhaps it is intended to navigate and divert attention from what appears to be their own unlawful actions, overreach and abuse of powers and bullying conduct, My request for a stay is not intended to delay these proceedings but rather to ensure fundamental fairness and clarity before proceeding further. Until such clarity is provided, I am compelled to maintain all procedural rights available to me to protect my interests in these consequential matters.

I trust that, consistent with the Commission's obligations as a model litigant, you will provide a comprehensive response addressing each of these points specifically. **Notably**, during the joint Tribunal call on February 14, 2025, the Tribunal acknowledged the privacy breach and requested from me "two weeks to respond." To date, no resolution has been provided, perpetuating procedural unfairness.

Sincerely,

Vida Reid